TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar**. Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m**. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling**.

July 07, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	**The Country Club Trust #3080, Vecchio Real Estate Corp., As Trustee vs. Ta** **26-01550851**	DEMURRER TO COMPLAINT Defendant Mai Ta ("Defendant") demurs to the third, fourth, and fifth causes of action asserted in the Complaint of plaintiff The Country Club Trust #3080, Vecchio Real Estate Corp., as Trustee ("Plaintiff"). Defendant does not oppose the demurrer to the fourth cause of action. Thus, the demurrer to the fourth cause of action is SUSTAINED without leave to amend. Third Cause of Action for Unfair Competition Defendant argues this cause of action fails because the relief sought by Plaintiff is monetary, not restitution, and not permitted under the UCL.

		“While the scope of conduct covered by the UCL is broad, its remedies are limited.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.) “A UCL action is equitable in nature; damages cannot be recovered.” (Ibid.) Rather, “ ‘[p]revailing plaintiffs are generally limited to injunctive relief and restitution.’ ” (Ibid.) Plaintiff alleges that Defendant’s fraud denied Plaintiff title to the subject property and seeks restitution and disgorgement of Defendant’s ill-gained profits and an order directing Defendant to transfer title of the property to Plaintiff. The latter is a prayer for injunctive relief, which Defendant does not argue is improper. Thus, even if the prayer for restitution of Defendant’s ill-gained profits is not proper, the third cause of action is supported by Plaintiff’s allegations that it was denied title and its prayer for injunctive relief. Therefore, the Demurrer to the third cause of action is OVERRULED. (See Elder v. Pacific Bell Telephone Co. (2012) 205 Cal.App.4th 841, 856, fn. 14 [“ ‘Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.’ ”].) Fifth Cause of Action for Unjust Enrichment Defendant argues that this cause of action fails because unjust enrichment is not a separate cause of action. There is a split of authority as to whether “unjust enrichment” is an independent cause of action. (Levine v. Blue Shield of California (2010) 189 Cal.App.4th 1117, 1138 [“Although some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation], this court has recently held that ‘[t]here is no cause of action in California for unjust enrichment.’ ”].) The Court will follow Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, which treats unjust enrichment as a separate claim.

		Thus, the Demurrer to the fifth cause of action is OVERRULED. Defendant to file an answer to the Complaint within 15 days. Moving party to give notice**.**
102	**Guiterrez vs. Gapzac Construction, Inc a California Corporation** **26-01555393**	Demurrer to Complaint Defendant ADU Resource Center ("Defendant") demurs to the fourth cause of action for fraud (intentional misrepresentation) and fifth cause of action for fraud (concealment) as alleged in Plaintiff Linda Valles Gutierrez's Complaint. Plaintiff Linda Valles Gutierrez, proceeding in pro per ("Plaintiff") opposed the demurrer. A complaint, with certain exceptions, needs only contain a 'statement of the facts constituting the cause of action, in ordinary and concise language' (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ' "so long as [it] gives notice of the issues sufficient to enable preparation of a defense." ' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "However, ' "[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced."" (Ibid.) "No error or defect in a pleading is to be regarded unless it affects substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) "The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Ibid.) A. Fourth Cause of Action for Fraud (Intentional Misrepresentation) "To establish a claim for fraudulent misrepresentation, the plaintiff must prove: '(1) the defendant represented to the

		plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff's reliance on the defendant's representation was a substantial factor in causing that harm to the plaintiff." (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 605–606; see also Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 ["The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage."].) Fraud causes of action must be pled with specificity. "This particularity requirement necessitates pleading facts which 'show how, when, where, to whom and by what means the representations were tendered.'" (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) Here, Plaintiff alleges that Defendant made the following representations that were false: • "On February 26, 2025, ARC represented in writing, via Danny Johnson (Director of Sales and Customer Care), prior to an in-person meeting, that Rodriguez was 'the most experienced builder we have and brings wisdom from decades of construction and project management.'" (Complaint, ¶ 28; see also Complaint, ¶ 31.) "ARC represented that Rodriguez was 'the most experienced builder we have and brings wisdom from decades of construction and project management.'" (Complaint, ¶¶ 203 and 206.) • "ARC represented that the ADU could be constructive within a specific projected budget range." (Complaint, ¶¶ 32, 33, 204, and 206.) • "ARC represented it would intervene if problems arose." (Complaint, ¶¶ 35, 99, 205, and 206.) Plaintiff further alleges that Danny Johnson (Director of Sales and Customer Care), Shaun Surabi (Director of Operations), and an individual named Jade acted on behalf of and made such representation on behalf of Defendants, which occurred in writing and in-person. (See Complaint, ¶¶ 28-39 and Exhibits to Complaint.)

		Plaintiff alleges that the above representations were false and "[a]t the time they were made, Defendants Gapzac, Rodriguez, and ARC knew the representations were false or made them recklessly without regard for truth" as well as "with intent to deceive and with conscious disregard of Plaintiff's rights." (Complaint, ¶¶ 206, 207, and 214.) Plaintiff further alleges that Defendant "intended that Plaintiff rely on these representations" and Plaintiff reasonably relied on these representations. (Complaint, ¶¶ 135, 208, and 209.) As a result, Plaintiff suffered financial loss, property damage, lost rental income, and emotional distress. (Complaint, ¶ 213.) Plaintiff also experience "recurring tension headaches that significantly impair Plaintiffs ability to perform daily activities." (Complaint, ¶ 133.) Given the above, the Court finds that Plaintiff's allegations are sufficiently specific to survive the demurrer. The Complaint sufficiently gives Defendant notice of the claims against it so that it may prepare its case. The Demurrer to the fourth cause of action for fraud (intentional misrepresentation) is OVERRULED. B. Fifth Cause of Action for Fraud (Concealment) Plaintiff's fifth cause of action is for fraud (concealment). "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal 4th 631, 638.) "A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the

		disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312].) Fraud causes of action must be pled with specificity. “…This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom and by what means the representations were tendered.’” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) With respect to fraudulent concealment claims, however, a plaintiff is not required to allege with the usual detail required in connection with fraud claims based on affirmative representations. In Vega v. Jones, Day, Reavis & Pogue (2004) 121 Cal.App.4th 282, the Court of Appeal found that the trial court had improperly sustained a demurrer to a concealment cause of action on the ground the cause of action on the ground plaintiff had failed to allege the cause of action “with the requisite degree of specificity.” (Id., 296.) The court held that “[t]he pertinent question in a concealment case is not who said what to whom.” (Ibid.) Rather the question is whether the defendant intentionally concealed something from plaintiff “so that they would proceed with the transaction.” (Ibid.) Additionally, “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (See Committee on Children’s Television,

		Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235.) Less specificity is required for fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356.) In support of the fifth cause of action for fraud, Plaintiff alleges that "ARC concealed the extent to which its cost projections were materially inaccurate" and that "it would not intervene despite prior assurances." (Complaint, ¶¶ 222 and 223.) As discussed above, Danny Johnson (Director of Sales and Customer Care), Shaun Surabi (Director of Operations), and an individual named Jade acted on behalf of and concealed information on behalf of Defendant, which occurred in writing and in-person. (See Complaint, ¶¶ 28-39 and Exhibits to Complaint.) "ARC had a duty to disclose material facts because it undertook to advise Plaintiff and referred the contractor." (Complaint, ¶ 226.) "Plaintiff did not know the concealed facts and could not have reasonably have discovered them." (Complaint, ¶ 227." Moreover, "Defendants intentionally concealed these facts to induce Plaintiff to continue making payments and to delay legal action." (Complaint, ¶ 228.) "Plaintiff reasonably relied on the absence of disclosure" and "would not have continued funding the projects" has she known the truth of the matters concealed. (Complaint, ¶¶ 229 and 230.) As a result, Plaintiff suffered financial loss, property damage, lost rental income, and emotional distress. (Complaint, ¶ 213.) Plaintiff also experience "recurring tension headaches that significantly impair Plaintiffs ability to perform daily activities." (Complaint, ¶ 133.) Defendant argues that Plaintiff should provide more detailed regarding the matters concealed but as caselaw establishes, less specificity is required for fraudulent concealment claims. Again, the Complaint sufficiently gives Defendant notice of the claims against it so that it may prepare its case. Given the above, the Demurrer is OVERRULED as to the fifth cause of action is for fraud (concealment). Plaintiff to give notice. Defendant shall file a responsive pleading within 20 days after Plaintiff serve notice of this ruling

103	**Medina vs. Hernandez** **25-01515721**	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint Defendants ANDREW HERNANDEZ and EDEN CIARAMITARO seek an order sustaining their demurrer to the 5-7th causes of action of Plaintiffs' Complaint. Demurrer is overruled as to the 5th, and 6th causes of action for Private Nuisance and Intentional Infliction of Emotional Distress. There are sufficient facts pled to put Defendants on notice of the claims pleaded against them. Demurrer is sustained with leave to amend as to the 7th cause of action for Violation of Penal Code§496. "[S]ection 496, subdivision (a) may be violated in either of two ways: (1) by buying or receiving 'any property that has been stolen' or (2) by 'conceal[ing], sell[ing], withhold[ing], or aid[ing] in concealing, selling, or withholding any property from the owner.'" (People v. Brown (2019) 32 Cal.App.5th 726, 732 [citing § 496, subd. (a)].) "[E]ach of the prohibited acts listed in section 496, subdivision ([a]) are separate and distinct offenses." (Ibid.) "In particular, [r]eceiving stolen property and concealing stolen property are separate offenses." (Ibid.) "While section 496(a) covers a spectrum of impermissible activity relating to stolen property, the elements required to show a violation of section 496(a) are simply that (i) property was stolen or obtained in a manner constituting theft, (ii) the defendant knew the property was so stolen or obtained, and (iii) the defendant received or had possession of the stolen

		property." (Switzer v. Wood (2019) 35 Cal.App.5th 116, 126, as modified (May 10, 2019).) "Theft, in turn, is defined in section 484, subdivision (a), as follows: 'Every person who ... shall knowingly and designedly, by any false or fraudulent representation or pretense, defraud any other person of money, labor or real or personal property ... is guilty of theft.'" (Johnson v. Connie, LLC (2025) 113 Cal.App.5th 850, 855.) "To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond 'mere proof of nonperformance or actual falsity.'" (Siry Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 361–362.) "This requirement prevents '[o]rdinary commercial defaults' from being transformed into a theft." (Id., 362.) "If misrepresentations or unfulfilled promises 'are made innocently or inadvertently, they can no more form the basis for a prosecution for obtaining property by false pretenses than can an innocent breach of contract.'" (Ibid.) "The statute's subdivision (c) authorizes treble damages, 'costs of suit, and reasonable attorney's fees' for '[a]ny person who has been injured by a violation of subdivision (a).'" (Johnson v. Connie, LLC (2025) 113 Cal.App.5th 850, 855 [citing § 496, subd. (c)].) Here, Plaintiffs plead: 71. Plaintiffs can bring a civil suit against Defendants for damages since Defendants stole Plaintiff's property by lying about repayment of two kids mattresses, one king bed mattress, kids bunk beds, kids blankets and toys, two sofas, and retaining money under the false claim that Defendants would pay, a sum of $1,415.91 for just the king mattress set alone, under the invoices, gorging money from Plaintiffs. Plaintiff has demanded return of the money owed, and all related fees and costs to be repaid. Defendants to date have refused to repay any of these amounts, all obtained through fraud,

		breach of contract, conversion, misrepresentation, and violation of Penal Code 496(c). [Complaint¶71.] Here, the facts of the Complaint seem to suggest there may have been a disagreement over how much money is owed to Plaintiffs after they moved. Perhaps Defendants (at most) converted Plaintiffs' deposit. While Defendants may have withheld Plaintiffs' money or deposit, there do not seem to be sufficient facts that Defendants stole the money or committed theft with a criminal intent. Defendants also seek an order striking out eight (8) items from the Complaint. As to ¶¶63, 65, 66, 67, 68 the language relates to punitive damages associated with the 5th and 6th causes of action which are both intentional torts. Motion is denied as to ¶¶63, 65, 66, 67, and 68. As to ¶71, this relates to the 7th cause of action and is therefore moot. As to ¶75, Plaintiffs pled, "75. This refusal was a breach, and was done in bad faith, entitling Plaintiffs to treble damages pursuant to Code." This ¶ is contained within the 8th cause of action for Violation of Civil Code 1950.5. Defendants essentially argue that Plaintiffs' own facts establish that there was justification for the deductions. Yet this argument is something that should be made on demurrer, or even MSJ, not a motion to strike. Motion is denied as to ¶75. Finally, as to the Prayer for Relief, Plaintiffs seek punitive damages generally in the prayer, not as to the 3rd cause of action, specifically. As such, Motion is DENIED. Plaintiff to give notice.

104	**OSP Health Management Inc. vs. Pole USA Investment One, LLC** **26-01546948**	1. Demurrer to Answer 2. Motion to Strike Portions of Answer Plaintiff OSP Health Management Inc. ("Plaintiff") demurs to the Answer of defendant Eggy Inc. d/b/a Yoo's Place ("Defendant") and moves to strike portions of the same for failure to state sufficient facts to constitute a defense and containing improper matter. Plaintiff argues that many of the affirmative defenses in the Answer fail for lack of sufficient facts because they are pled in a conclusory matter. Plaintiff further argues that the affirmative defenses fail because they do not refer to the causes of action to which they relate and that certain defenses are not applicable and should be stricken. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) " 'The phrase "new matter" refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as "new matter." ' " (Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 812.) "Such 'new matter' is also known as 'an affirmative defense.' " (Ibid.) "Affirmative defenses must not be pled as 'terse legal conclusions,' but 'rather . . . as facts "averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint." ' " (Id. at pp. 812-813.) If, as often occurs, a defendant does not have evidence of certain defenses but fears a waiver argument, they include the defense in conclusory, barren fashion. (See Ekstrom v. Marquesa at Monarch Beach HOA (2008)

		168 Cal.App.4th 1111, 1122-1123.) Defendants should avoid this practice and only plead the defense when the evidence supports it and seek leave to amend if need be – which is to be routinely granted. (See Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761; Green v. Rancho Santa Margarita Mortgage Co. (1994) 28 Cal.App.4th 686, 692-693.) The first, tenth, eleventh, and sixteenth asserted defenses are denials of what is alleged in the Complaint. They do not add any new matter, and they therefore do not fail for lack of details or facts. Thus, the Demurrer to these defenses is OVERRULED. The remaining affirmative defenses raise "new matters" that are not found in the Complaint but are not supported by any facts or details. Instead, they rely on boilerplate legal conclusions. Thus, the Demurrer to these defenses is SUSTAINED with 20 days leave to amend. Plaintiff's Demurrer based on uncertainty should be OVERRULED, as demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (Lickiss v. Fin. Indus. Regulatory Auth. (2012) 208 Cal.App.4th 1125, 1135.) As to the Motion to Strike, to the extent it is directed at any of the affirmative defenses other than the first, tenth, eleventh, and sixteenth, it is DENIED as MOOT in light of the ruling on the Demurrer. Plaintiff argues the tenth and sixteenth affirmative defenses for assumption of risk should be stricken because they are duplicative and are based on bare legal conclusions. Plaintiff cites no legal authority showing that striking duplicative or overlapping affirmative defenses is proper. Further, because these are denials of what is alleged in the Complaint and not new matter, additional facts are not required. Thus, the Motion to Strike as to the tenth and sixteenth affirmative defenses is DENIED.

		Lastly, Plaintiff seeks to strike the prayer for attorney's fees on the grounds that no basis for such recovery is alleged. It is "well-established [] that in the absence of a special statute or a contractual provision for attorney's fees, the prevailing party is not entitled to recover attorney's fees from his opponent." (Olson v. Arnett (1980) 113 Cal.App.3d 59, 67.) Here, Defendant does not allege any statutory or contractual bases for its request for attorney's fees. Thus, the Motion to Strike as to attorney's fees is GRANTED with 20 days leave to amend. Moving party to give notice
105	**Smith vs. Serna** **25-01504168**	Motion to Strike Attorneys' Fees from Cross-Complaint Cross-Defendant, San Diego Gas & Electric Company moves for an order striking attorneys' fees allegations in the Cross-Complaint of Samuel Joseph Serna and California Professional Engineering, Inc. at paragraphs 12, 16, 22, and 23, and the Prayer at page 6, paragraph 3. The Motion to Strike is GRANTED, with 10 days' leave to amend. Cross-Complainants, Samuel Joseph Serna and California Professional Engineering, Inc., provide that they sought to file an Amended Cross-Complaint that withdrew the attorneys' fees, but it was rejected, and seek leave to file an Amended Cross-Complaint withdrawing attorneys' fees. Thus, Cross-Complainants concede to Cross-Defendant San Diego Gas & Electric Company's argument that the prayer for attorneys' fees should be stricken as the prayer and allegations for attorneys' fees are not supported by the allegations of the Cross-Complaint or operative complaint. (ROA 92, Declaration of Bahareh Habibi, ¶¶ 2-5.) Cross-Complainants to file and serve an amended cross-complaint within 10 days. The amended cross-complaint must be serially numbered to differentiate it

		from previous pleadings. (See California Rules of Court, rule 3.1324(a)(1).) Cross-Defendant to give notice
106	**Hillsboro Brown Capital, LLC vs. Taft** **19-01087702**	Motion to Be Relieved as Counsel of Record Gina M. Austin and Tamara Rozmus of Austin Legal Group ("Moving Attorneys") move to be relieved as counsel of record for CMX Distribution Inc. A motion to be relieved as counsel must be accompanied by a declaration on the mandatory Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil (form MC-052). Without that form, the Court cannot determine whether service on the client was properly done at the last known address and what steps were made to confirm that the client's last known address is current. The hearing on the motion is CONTINUED to 08/04/2026 at 10:00 AM. Moving Attorneys are ORDERED to file a supplemental declaration on the correct form with all required information. Moving Attorneys are also ORDERED to file a revised proposed order reflecting all currently pending hearing dates. These filings are to be submitted no later than nine court days before the continued hearing date. Moving Attorneys to give notice.
108	**Schiller vs. Fivefold Properties Dunnegan, LLC** **24-01380115**	1. Motion to Enforce Court Order 2. Order to Show Cause re: Default as to Fivefold Properties Dunnegan LLC Plaintiff Shanti Schiller ("Plaintiff") will and hereby does move the Court for an order (1) compelling Defendant Jennifer Leonard ("Defendant") to comply with the Court's February 5, 2026 order (the "Order");

		(2) imposing monetary sanctions upon Defendant in the sum of $6,107.00 for reasonable attorneys' fees and costs incurred in connection with Plaintiff's efforts to enforce the Order; and (3) imposing monetary sanctions upon Defendant in the sum of $1,500.00, payable to the Court, for her failure to comply with the Order. CCP§128(4) authorizes the Court to "compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." CCP§ 2023.030(a) authorizes sanctions "against anyone engaging in conduct that is a misuse of the discovery process." Disobeying a court order to provide discovery constitutes a misuse of the discovery process. (CCP§ 2023.010(g).) CCP§177.5 authorizes a judicial officer to impose monetary sanctions not to exceed fifteen hundred dollars ($1,500.00) payable to the court "for any violation of a lawful court order by a person, done without good cause or substantial justification." In this instance, on February 5, 2026, the Court GRANTED Plaintiff's Motion to Compel Further Responses to Form Interrogatories and Ordered Defendant to provide code compliant responses, without objection, to Plaintiff's Form Interrogatories, Set One, No. 2.5, limited in scope to only Defendant's current residence, no later than five (5) days after receiving notice of this order. The Court also IMPOSED sanctions upon Defendant Jennifer Leonard in the total collective amount of $4,000.00, payable no later than ninety (90) days after receiving notice of the order. Here, the Declaration of Attorney Wright establishes that, "On February 5, 2026, after the hearing on the Motion to Compel, my office served Defendant with notice of the Court's order on the Motion to Compel."

		(Wright Decl. ¶12.) This Notice of Ruling was served via electronic mail and regular mail. (See Ex. Id, Ex. 1.) Thereafter, on February 16, 2026, she sent a letter to Defendant asking that she comply with the Court's order on or before February 19, 2028. (Id¶14.) To date, Attorney Wright has not received a supplemental response or response to the meet and confer. (Id.¶5.) As such, Defendant Leonard, who is in pro per, has seemingly violated this Court's order. However, this motion was sent to Defendant Leonard via email only. Yet, within the Motion to be Relieved as Counsel of Record documents filed with this Court, Defendant Leonard's prior counsel listed Defendant Leonard's current and last known address as: 220 Newport Center Drive, 11, Newport Beach, CA 92660. As such, in an abundance of caution, recommendation is to continue this motion to 08/11/2026 at 10:00 am for MP to serve Defendant Leonard at 220 Newport Center Drive, 11, Newport Beach, CA 92660; and via email. Thereafter, if the Motion remains unopposed, the Court intends on granting it. MP to give notice
109	**Franks vs. Ford Motor Company** **23-01361158**	Motion for Judgment on the Pleadings Defendant Ford Motor Company ("Ford") moves for judgment on the pleadings as to the first through fourth causes of action of plaintiff Chad Franks' ("Plaintiff") First Amended Complaint on the ground that that Plaintiff cannot bring claims under the SBA based on the purchase of a "used" vehicle and the seventh cause of action fails because the claim does not apply if Plaintiff does not have a viable state law claim and

		Plaintiff failed to comply with the pre-suit dispute requirements. The Court declines to consider Plaintiff's untimely filed opposition, which was filed only six court days before the hearing date. A defendant may move for judgment on the pleadings against the entire complaint or as to any of the causes of action stated therein if the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438(b), (c)(1)(B)(ii).) "A motion for judgment on the pleadings performs the same function as a general demurrer and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) Here, Plaintiff alleges he entered a warranty contract with Ford on August 31, 2022, regarding a Certified Pre-Owned 2018 Lincoln Navigator. This allegation shows that the vehicle purchased by Plaintiff was used. Ford argues that the Song-Beverly causes of action fail because the SBA does not apply because Plaintiff fails to allege that Ford provided a new car warranty in connection with the purchase of the vehicle. However, the allegations do not show that the used vehicle was not issued with a new warranty. Thus, Ford's Motion as to the Song-Beverly causes of action is DENIED. (See Rodas v. Spiegel (2001) 87 Cal.App.4th 513, 517 ["The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded."].) Ford argues that the breach of implied warranty of merchantability fails because Plaintiff purchased a used vehicle and only distributors or sellers of used goods have implied warranty obligations. "Under the lemon law, only distributors and retail sellers, not manufacturers, are liable for breach of implied warranties in the sale of a used car where . . . the manufacturer did not offer the used car for sale to the

		public." (Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 389.) "Where the manufacturer sells directly to the public, however, it takes on the role of a retailer." (Id. at p. 399, internal citations omitted.) Here, Plaintiff alleges that Ford is both a manufacturer and/or a distributor under the Song-Beverly Act. (FAC ¶ 12.) Thus, the cause of action states sufficient facts despite the vehicle being used. The Motion as to the breach of implied warranty cause of action is therefore DENIED. Ford argues that the seventh cause of action for The Magnuson-Moss Warranty Act fails because Plaintiff must have a valid state warranty law claim to assert such a claim. This argument fails because Plaintiff has adequately stated warranty claims under the Song-Beverly Act as discussed above. Ford further argues that this cause of action fails because Ford maintains a third-party dispute resolution process under the Better Business Bureau ("BBB") Auto Line, Plaintiff was required to resort to that dispute resolution process before filing suit, and Plaintiff failed to satisfy the pre-suit requirements. 15 U.S.C. § 2310(a)(3) provides that a consumer may not commence a civil action unless he or she initially resorts to an informal dispute settlement procedure established by the warrantor if such procedure meets certain requirements and a requirement is incorporated in a written warranty that the consumer resort to such procedure before pursuing any legal remedy. Here, the warranty attached to the FAC includes no requirement that consumers such as Plaintiff must resort to Ford's dispute resolution process before pursuing any legal remedy. Instead, the warranty provides that consumers "may use" Ford's BBB Auto Line Program and "may be eligible to participate in the BBB AUTO LINE program" if their warranty concerns have not been resolved using the three-step procedure outlined in the warranty booklet. The warranty further

		provides information to consumers on how they can apply to the BBB Auto Line program. None of this verbiage indicates that consumers are required to resort to the dispute resolution process before filing a civil suit. Considering all the above, the Motion as to the seventh cause of action is DENIED. Moving party to give notice.
110	**Arevalo vs. Clinton** **21-01216715**	Motion to Enforce Settlement Defendants Richard Arthur Clinton and Helen Clinton ("Defendants" or the "Clintons") move for an order enforcing a settlement agreement with plaintiff Diane Arevalo Teets ("Plaintiff" or "Ms. Arevalo") and entering judgment thereon. Defendants' evidentiary objections to the Declaration of Charlene J. Wynder are OVERRULED. On November 14, 2024, the parties participated in a MSC before Temporary Judge G. Emmett Raitt, Jr. The minute order reads in relevant part: "Settlement conference held. Case is settled." Counsel for the Clintons, Dina A. Ariza, asserts that she attended the MSC and the parties agreed to the following terms: Ms. Arevalo would be compensated $45,000 in exchange for a grant of easement in favor of the Clintons for the purpose of maintenance, repair and/or replacement of the utilities, air conditioning unit, etc. and that side of the Clintons' home where those utilities are located; the parties would do what was necessary to achieve the subordination of that deed of trust encumbering Ms. Arevalo's property affected by the easement; and each party would bear their own attorney's fees and costs and mutual general releases would be exchanged. (Declaration of Dina A. Ariza ¶ 3.) On November 15, 2024, the primary terms of the settlement were emailed from Ms. Ariza's co-counsel to Charlene Wynder, counsel for Ms. Arevalo. (Id. ¶ 4.)

		That correspondence confirms the above terms. (Id., Exhibit 1.) On April 11, 2025, Ms. Ariza sent drafts of a settlement agreement, memorandum of agreement, and grant of easement to Ms. Wynder by email and asked how they should proceed with obtaining the subordination agreement from Ms. Arevalo's lender. (Id. ¶¶ 7-8.) Ms. Wynder replied stating that Ms. Arevalo had already submitted paperwork to her lender authorizing Ms. Ariza to speak with them about the subordination agreement. (Id. ¶ 9.) The third-party authorization signed by Ms. Arevalo was provided on April 29. (Id. ¶ 11.) From April through December, Ms. Ariza followed up with Ms. Wynder regarding review of the settlement documents. On December 3, 2025, Ms. Wynder provided her proposed revisions. (Id. ¶ 22.) After the parties were unable to reach an agreement over the proposed revisions, this motion followed. Ms. Wynder's declaration in opposition asserts that the parties agreed to a settlement in principle but that was subject to final negotiation of the settlement agreement. Ms. Wynder states that the full details of the easement had yet to be negotiated and Ms. Arevalo always had concerns about Mrs. Clinton harassing her family and wanted to ensure that the settlement agreement included terms preventing such harassment. The parties dispute whether the November 14, 2024, MSC was "before the court" for purposes of section 664.6. The minute order lists G. Emmett Raitt, Jr., as the temporary judge. "The position of temporary judge is authorized expressly by article Vi, section 21, of the California Constitution[.]" (In re Marriage of Assemi (1994) 7 Cal.4th 896, 907.) Further, the parties must have stipulated Mr. Raitt's serving as a temporary judge, as stipulation to a temporary judge is required. (See ibid.) If the parties had not stipulated Mr. Raitt serving as a temporary judge, the MSC would have been continued. "Once a temporary judge has taken an oath of office, he or she has the same authority as a

		regular judge. . ..” (Id. at p. 908.) Where one’s role is “closely analogous to that of a judge, in a judicial proceeding, empowered to exercise what are essentially judicial functions”, the “before the court” requirement will be satisfied. (See id. at p. 909 [holding that because Judge Meyers’s role was closely analogous to that of a judge, the “before the court” requirement was satisfied].) Here, Mr. Raitt was serving in a role that was analogous to that of a judge, upon stipulation of the parties, in a judicial proceeding. Thus, the settlement was made orally before the Court for purposes of section 664.6. Ms. Arevalo’s counsel asserts that an oral stipulation could not have been made on Ms. Arevalo’s part because Ms. Arevalo was unable to speak at the time of the MSC, due to a stroke. However, “section 664.6 does not require that the parties themselves orally stipulate and instead allows counsel for the parties to orally stipulate on their behalf.” (Greisman v. FCA US, LLC (2024) 103 Cal.App.5th 1310, 1326.) Ms. Arevalo as well as her counsel were presented at November 14, 2024, MSC and, notably, Ms. Wynder does not state that she did not stipulate the terms of the settlement on Ms. Arevalo’s behalf. The evidence above shows that the parties orally stipulated to specific terms of the settlement: Ms. Arevalo would be compensated $45,000 in exchange for a grant of easement in favor of the Clintons for the purpose of maintenance, repair and/or replacement of the utilities, air conditioning unit, etc. and that side of the Clintons’ home where those utilities are located; the parties would do what was necessary to achieve the subordination of that deed of trust encumbering Arevalo’s property affected by the easement; and each party would bear their own attorney’s fees and costs and mutual general releases would be exchanged. The correspondence between counsel shortly after the MSC discloses that Ms. Wynder understood that these terms accurately reflected the settlement reached by the

		parties. There is no indication that any essential element of the parties' agreement was reserved for future agreement or further negotiation. Ms. Arevalo argues that the stipulation was not enforceable because numerous terms were outstanding, such as a survey, consent by the mortgage holder, a subordination agreement, and the specific terms and conditions of the easement. Ms. Arevalo argues that it is clear that material terms were still subject to negotiation. However, this argument is not persuasive. The evidence shows that the parties agreed to do what was necessary to achieve subordination of the deed of trust encumbering Ms. Arevalo's property and that the Clintons would be granted an easement for purposes of maintenance and repair. Those terms are sufficiently definite. The fact that the written instruments were not yet reduced in writing does not render the settlement agreement unenforceable or lacking in definite terms. (See Blix Street Records, Inc. v. Cassidy (2010) 191 Cal.App.4th 39, 48 ["When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement."].) Further, any survey and consent by the mortgage holder would be in furtherance of the parties' agreement for an easement and subordination of the deed of trust, rather than additional terms that require further negotiation. Considering all the above, Defendants' Motion pursuant to Code of Civil Procedure section 664.6 is GRANTED. Defendants to submit a proposed judgment within 15 days. Moving party to give notice.
111	**Bian vs. Latreill** **21-01390510**	Anti SLAPP Motion

		The hearing on Plaintiff/Cross-Defendant Wenqiang ("Wayne") Bian's Special Motion to Strike (Anti-SLAPP) is CONTINUED to 08/18/2026 at 10:00 a.m. in Department C25. The Court invites Cross-Complainant LaTreill to submit a sur-reply of no more than five pages addressing Bian's contention that LaTreill must meet a heightened "clear, unambiguous, and explicit" standard of proof in order to successfully oppose the motion. (See Reply at pp.4-6.) The brief shall be filed and served no later than 9 court days prior to the continued hearing date. No other briefing is allowed. Clerk to give notice.
113	**Chisam vs. Yaz Limo and Parking Service** **24-01439553**	Motion for Summary Judgment and/or Adjudication Defendants Yaz Limo and Parking Service and Jacques Kazzi ("Defendants") moves for an order granting summary judgment or adjudication in favor of Defendants on the first cause of action for negligence/negligence per se and second cause of action for negligent infliction of emotional distress. Plaintiffs Patricia Ann Chisam and Helene Francine Handler ("Plaintiffs") oppose the motion. First, pursuant to the parties' stipulation, the motion is MOOT as to the second cause of action for negligent infliction of emotional distress pursuant to the party's stipulation and the First Amended Complaint. (See ROAs 81 and 84.) Moreover, the parties agree that, although the motion for summary judgment was filed as to the original complaint, the motion shall apply to the first cause of

		action for negligence/negligence per se as alleged in the operative First Amended Complaint. (ROA 81.) Moving to the merits of the issues remaining, the separate statement presents two issues as to the first cause of action for negligence/negligence per: (1) whether Defendants owed a duty to Plaintiff and (2) whether Defendants breached that duty. The Court finds that both are triable issues of fact. 1. Duty “The ‘legal duty’ of care may be of two general types: (a) the duty of a person to use ordinary care in activities from which harm might reasonably be anticipated [, or] (b) [a]n affirmative duty where the person occupies a particular relationship to others.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1016–1017, as modified (Sept. 22, 1997).) “In the first situation, he is not liable unless he is actively careless; in the second, he may be liable for failure to act affirmatively to prevent harm.” (Id., p. 1017.) “The special relationship of common carrier and passenger gives rise to the highest duty of care.” (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) Such duty is codified in Civil Code section 2100, which states that “[a] carrier of persons for reward must use the utmost care and diligence for their safe carriage, must provide everything necessary for that purpose, and must exercise to that end a reasonable degree of skill.” (Civ. Code, § 2100; McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997) [“While a carrier is not an insurer of its passenger's safety [citation], a carrier is required by statute “[to] use the utmost care and diligence for safe carriage, [to] provide everything necessary for that purpose, and [to] exercise

		to that end a reasonable degree of skill" (Civ. Code, § 2100)."].) "This statutory duty is one of utmost care and the vigilance of a very cautious person." (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) "Likewise, at common law, a common carrier is under a duty to its passengers to take reasonable action [¶] (a) to protect them against unreasonable risk of physical harm, and [¶] (b) to give them first aid after it knows or has reason to know that they are ill or injured, and to care for them until they can be cared for by others." (Ibid. [internal quotations omitted].) Importantly, "this heightened degree of care is owed only while passengers are in transitu, and until they have safely departed the carrier's vehicle." (McGettigan v. Bay Area Rapid Transit Dist. (1997) 57 Cal.App.4th 1011, 1017, as modified (Sept. 22, 1997).) Here, caselaw establishes that a carrier owes a heightened duty to its passengers until the passengers safely depart the carrier's vehicle. The Court finds that whether Plaintiff was in transit or had safely departed Defendant's vehicle is a triable issue of material fact. Plaintiffs presented evidence that Plaintiff Chisam had not yet exited the vehicle and that Defendant opened the door that Plaintiff Chisam fell out of; as such, Defendant would still owe a heightened duty of care to Plaintiff until Plaintiffs safety departed the carrier's vehicle. Accordingly, Defendants argument that it is undisputed that they did not owe a heightened duty to Plaintiffs is without merit. Moreover, Defendants also owe an ordinary duty to "use ordinary care in activities from which harm might reasonably be anticipated," such as opening a car door for another person who may be sleeping and/or intoxicated and leaning against the door that is to be opened.

		The motion for summary judgment as to the first cause of action for negligence/negligence per se is DENIED as to Defendants' duty argument. 2. Breach Additionally, the Court finds that whether Defendants breached their ordinary and heightened duties owed to Plaintiff Chisam is a triable issue of material fact for the jury. The evidence before the Court creates a triable issue of fact as to how Plaintiff Chisam exited the vehicle and who opened the door that Plaintiff Chisam allegedly fell out of. As such, the Motion is DENIED as to Defendants' argument that they did not breach a duty owed to Plaintiff Chisam. The Court notes that the Complaint does not appear to allege that the first cause of action is brought by Plaintiff Handler. Rather, it appears that the first cause of action is only brought by Plaintiff Chisam, since the Complaint only alleges damages to Chisam in reference to this cause of action.1 The Motion is DENIED. Plaintiff to give notice.